

# Solano County Health & Social Services Department

Mental Health Services  
Public Health Services  
Substance Abuse Services  
Older & Disabled Adult Services



Eligibility Services  
Employment Services  
Children's Services  
Administrative Services

**Patrick O. Duterte, Director**

## EMERGENCY MEDICAL SERVICES AGENCY

Richard C. Lotsch, D.O.  
EMS Agency Medical Director

275 Beck Avenue MS 5-240  
Fairfield, Ca. 94533  
(707) 784-8155 FAX (707) 421-6682  
www.solanocounty.com

Ted Selby  
EMS Agency Administrator

## POLICY MEMORANDUM 1800

DATE: 1 December 2010

REVIEWED/APPROVED BY:

  
RICHARD C. LOTSCH, D.O., EMS AGENCY MEDICAL DIRECTOR

  
TED SELBY, EMS AGENCY ADMINISTRATOR

**SUBJECT: SOLANO EMERGENCY MEDICAL SERVICES COOPERATIVE BOARD OF DIRECTORS CONFLICT OF INTEREST POLICY**

### I. PURPOSE:

- A. To protect the integrity of the Solano Emergency Medical Services Cooperative (SEMSC) Board of Directors.
- B. To protect the integrity of other associated leadership such as the Emergency Medical Services (EMS) Medical Director and EMS Administrator.

### II. SCOPE:

Describe the Conflict of Interest Policy, SEMSC Conflict of Interest Code, and California Form 700 – Statement of Economic Interests.

### III. DEFINITIONS:

- A. **Conflict of Interest:** A situation that has the potential to undermine the impartiality of a person because of the possibility of a clash between the person's self-interest and professional-interest or public-interest.
- B. **Conflict of Interest Code:** Government Code Section 81000 - The Political Reform Act, requires most state and local government agencies to adopt and promulgate conflict of interest codes.

- C. **California State Form 700**: A form containing three groups of check lists describing Jurisdiction of Office, Type of Statement, Schedule Summary, and a Signature Section where the official affirms his or her claim.  
Note - This form is updated with changes by the State of California annually.

**IV. POLICY:**

- A. SEMSC Board Members, the EMS Medical Director, and the EMS Administrator are expected to use the highest professional ethics in conducting SEMSC activities.
- B. No SEMSC Board Member, the EMS Medical Director, or the EMS Administrator shall undertake any activity which creates a conflict of interest, or which could be reasonably construed to do so. Any SEMSC Board Member, the EMS Medical Director, or the EMS Administrator engaging in or planning any activity that may present a conflict of interest must inform the SEMSC Board in writing, in advance, of the nature of the activity.
- C. In general, SEMSC Board Members, the EMS Medical Director, and the EMS Administrator are required to report financial interest if they may potentially gain or profit personally by any recommendation or decision made by virtue of their SEMSC position.
- D. SEMSC Board Members, the EMS Medical Director, and the EMS Administrator shall be familiar with this SEMSC policy.
- E. SEMSC Board Members, the EMS Medical Director, and the EMS Administrator shall be familiar with the Conflict of Interest Code for the SEMSC as created by County Counsel. Exhibit (A) of this Code requires all SEMSC Board Members, the EMS Medical Director, and the EMS Administrator to file California State Form 700 to be maintained at the EMS Agency on behalf of the SEMSC.

**V. ATTACHMENTS:**

- A. Attachment A: Conflict of Interest Code for the Solano Emergency Medical Services Cooperative
- B. Attachment B: California Form 700  
Note: California Form 700 may be found on the Solano County Website on the Registrar of Voters page in the Departments section.

**CONFLICT OF INTEREST CODE  
FOR THE  
SOLANO EMERGENCY MEDICAL SERVICES COOPERATIVE**

The Political Reform Act, Government Code Section 81000, et seq., requires state and local government agencies to adopt and promulgate conflict of interest codes. The Fair Political Practices Commission has adopted a regulation, 2 California Code of Regulations, Section 18730, which contains the terms of a standard conflict of interest code. It can be incorporated by reference and may be amended by the Fair Political Practices Commission after public notice and hearings to conform to amendments in the Political Reform Act. Therefore, the terms of 2 California Code of Regulations, Section 18730 and any amendments to it duly adopted by the Fair Political Practices Commission are hereby incorporated by reference and, along with the attached Exhibits in which members and employees are designated and disclosure categories are set forth, constitute the conflict of interest code of the agency named above.

All designated positions required to submit a statement of financial interests shall file the disclosure statement with the agency who will make the statements available for public inspection and reproduction. (Government Code Section 81008). Upon receipt of the statements the agency shall make and retain a copy thereof and shall forward the original of these statements to the Solano County Elections Department, Attention: Statement of Economic Interests filing officer.

**EXHIBIT A**

**POSITIONS REQUIRED TO FILE**

- All members of the Board of Directors
- Emergency Medical Services Medical Director
- Emergency Medical Services Administrator

**EXHIBIT B**  
**INTERESTS WHICH MUST BE DISCLOSED**

Filers must report interests in all categories to the extent that such interests are with entities that provide any product, service or financial support for emergency or non-emergency medical services or communications and dispatch in the State of California.



2008/2009

# FORM 700

## Statement of Economic Interests

Also available on the FPPC website:  
Form 700 Reference Pamphlet

a public document

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### **Fair Political Practices Commission**

428 J Street, Suite 620 • Sacramento, CA 95814

Toll-Free Advice Line: 866-ASK-FPPC • (866) 275-3772

Telephone: (916) 322-5660

[www.fppc.ca.gov](http://www.fppc.ca.gov)

## What's New

- Gift limit increased to \$420.
- New restrictions on receiving tickets to nonprofit and political fundraisers.

More information is in the Reference Pamphlet.

## Who must file:

- Elected and appointed officials and candidates listed in Government Code Section 87200.
- Employees and appointed officials filing pursuant to a conflict-of-interest code. Obtain your disclosure categories, which describe the interests you must report, from your agency. They are not part of the Form 700.
- Candidates running for local elective offices that are designated in a conflict-of-interest code (for example, county sheriffs, city clerks, school board trustees, and water board members).
- Members of newly created boards and commissions not yet covered under a conflict-of-interest code.

(See Form 700 Reference Pamphlet, page 2, at [www.fppc.ca.gov](http://www.fppc.ca.gov) or obtain from your filing officer.)

## Where to file:

### 87200 Filers

|                      |                               |
|----------------------|-------------------------------|
| State offices        | ➔ Your agency                 |
| Judicial offices     | ➔ The clerk of your court     |
| Retired Judges       | ➔ Directly with FPPC          |
| Legislative Staff    | ➔ Directly with FPPC          |
| County offices       | ➔ Your county filing official |
| City offices         | ➔ Your city clerk             |
| Multi-County offices | ➔ Your agency                 |

### Members of Boards/Commissions of Newly Created Agencies:

File with your newly created agency or with your agency's code reviewing body as provided by the code reviewing body.

### Code Filers — State and Local Officials and Employees Designated in a Conflict-of-Interest Code:

File with your agency, board, or commission unless otherwise specified in your agency's conflict-of-interest code. In most cases, the agency, board, or commission will retain the statements.

Candidates file with their local elections office.

## How to file:

A Form 700 should be provided to you by your filing official. An interactive version of the Form 700 is available on our website at [www.fppc.ca.gov](http://www.fppc.ca.gov).

You only have to report investments and business positions in business entities, real property, and income from sources that are located in or doing business in your agency's jurisdiction. However, reportable gifts must be disclosed regardless of the jurisdiction. See Form 700 Ref. Pamphlet, page 12, for more information.

## When to file:

### Annual Statements

#### ➔ March 2, 2009\*

- Elected State Officers
- Judges and Court Commissioners
- State Board/Commission Members listed in Government Code Section 87200

#### ➔ April 1, 2009

- Most other filers

Individuals filing under conflict-of-interest codes in city and county jurisdictions should verify the annual filing date with their local filing officer.

\*Because March 1 is a Sunday, the deadline is extended. Statements postmarked by the filing deadline are considered timely filed.

### Assuming, Leaving, and Initial Statements

Most filers file within 30 days of assuming or leaving office or within 30 days of the effective date of a newly adopted or amended conflict-of-interest code.

### Candidate Statements

File no later than the final filing date for the declaration of candidacy or nomination documents.

### Amendments

Statements may be amended at any time. You are only required to amend the schedule that needs to be revised. It is not necessary to amend the entire filed form. Obtain amendment schedules from your filing official or interactively at [www.fppc.ca.gov](http://www.fppc.ca.gov).

**Statements that are mailed are considered filed on the postmark date. There is no provision for filing deadline extensions.** Statements of 30 pages or less may be faxed by the deadline as long as the originally signed paper version is sent by first class mail to the filing officer within 24 hours.

## INTRODUCTION

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The Political Reform Act (Gov. Code Sections 81000-91014) requires most state and local government officials and employees to publicly disclose their personal assets and income. They also must disqualify themselves from participating in decisions which may affect their personal economic interests. The Fair Political Practices Commission (FPPC) is the state agency responsible for issuing the attached Statement of Economic Interests, Form 700, and for interpreting the law's provisions.

### Gift Prohibition

Gifts received by most state and local officials, employees, and candidates are subject to limit. For 2007-2008, the gift limit was \$390 from a single source during a calendar year. For 2009-2010, the limit increased to \$420 from a single source during a calendar year.

In addition, state officials, state candidates, and certain state employees are subject to a \$10 limit per calendar month on gifts from lobbyists and lobbying firms registered with the Secretary of State. (See Ref. Pamphlet, page 9, for detailed information.)

State and local officials and employees also should check with their agency to determine if any other restrictions apply.

### Honorarium Ban

Most state and local officials, employees, and candidates are prohibited from accepting an honorarium for any speech given, article published, or attendance at a conference, convention, meeting, or like gathering. (See Ref. Pamphlet, page 9, for detailed information.)

### Loan Restrictions

Certain state and local public officials are subject to restrictions on loans. (See Ref. Pamphlet, page 13, for detailed information.)

### Disqualification

Public officials are, under certain circumstances, required to disqualify themselves from making, participating in, or attempting to influence governmental decisions that will affect their economic interests. This may include interests they are not required to disclose (for example, a personal residence is often not reportable, but may be disqualifying). Specific disqualification requirements apply to 87200 filers (for example, city councilmembers, members of boards of supervisors and planning commissioners). These officials must orally identify the economic interest that creates a conflict of interest and leave the room before a discussion or vote takes place at a public meeting. For more information, consult Government Code Section 87105 and Regulation 18702.5, or refer to the booklet entitled "Can I Vote? Conflicts of Interest Overview," all of which are available on the FPPC website. Visit [www.fppc.ca.gov](http://www.fppc.ca.gov) and click on the Library & Publications icon.

### Post-Governmental Employment

There are restrictions on representing clients or employers before former agencies. The provisions apply to elected state officials, most state employees, local elected officials, county chief administrative officers, city managers, including the chief administrator of a city, and general managers or chief administrators of local special districts. The FPPC website has fact sheets explaining the provisions.

### Late Filing

The filing officer who retains originally signed statements of economic interests may impose on an individual a fine for any statement that is filed late. The fine is \$10 per day up to a maximum of \$100. Late filing penalties can be reduced or waived under certain circumstances.

Persons who fail to timely file their Form 700 may be referred to the FPPC's Enforcement Division (and, in some cases, to the Attorney General or district attorney) for investigation and possible prosecution. In addition to the late filing penalties, a fine of up to \$5,000 per violation may be imposed.

**For assistance** concerning reporting, prohibitions, and restrictions under the Act:

- Call the FPPC toll-free at (866) ASK-FPPC.
- See the booklet entitled "Your Duty to File: A Basic Overview of State Economic Disclosure Law and Reporting Requirements for Public Officials."

### Form 700 Public Access

Statements of Economic Interests are public documents. The filing officer must permit any member of the public to inspect and copy any statement.

- Forms must be available as soon as possible during the agency's regular business hours, but in any event not later than the second business day after the statement is received.
- No conditions may be placed on persons seeking access to the forms.
- No information or identification may be required from persons seeking access.

Reproduction fees of no more than 10 cents per page may be charged.



## INSTRUCTIONS — COVER PAGE

Enter your name, mailing address, and daytime telephone number in the spaces provided. Because the Form 700 is a document available for public review, you may list your business/office address instead of your home address.

### Part 1. Office, Agency, or Court

- Enter the name of the office sought or held, or the agency or court. Consultants must enter the public agency name rather than their private firm name. (Examples: State Assembly; Board of Supervisors; Office of the Mayor; Department of Finance; Hope County Superior Court.)
- Indicate the name of your division, board, or district, if applicable. (Examples: Division of Waste Management; Board of Accountancy; District 45.)
- Enter your position title. (Examples: Director; Chief Counsel; City Council Member; Staff Services Analyst.)
- If you hold multiple positions (for example, a city council member who also is a member of a county board or commission), you may be required to file statements with each agency.

To simplify your filing obligations, you may complete an expanded statement.

To do this, enter the name of the other agency(ies) with which you are required to file and your position title(s) in the space provided. Attach an additional sheet if necessary. Complete one statement covering the disclosure requirements for all positions. Each copy must contain an original signature. Therefore, before signing a statement, make a copy for each agency. Sign each copy with an original signature and file with each agency.

Remember that if you assume or leave a position after a filing deadline, you must complete a separate statement. For example, a city council member who assumes a position with a county special district after the April 1 annual filing deadline must file a separate assuming office statement. In subsequent years, the city council member may expand his or her annual filing to include both positions.

### Part 2. Jurisdiction of Office

- Check the box indicating the jurisdiction of your agency and, if applicable, identify the jurisdiction. Judges, judicial candidates, and court commissioners have statewide jurisdiction. All other filers should review Ref. Pamphlet, page 12, to determine their jurisdiction.
- If your agency is a multi-county office, list each county in which your agency has jurisdiction.

- If your agency is not a state office, court, county office, city office, or multi-county office (for example, school districts and special districts), check the “other” box and enter the county or city in which the agency has jurisdiction.

|                                                                                                                                             |
|---------------------------------------------------------------------------------------------------------------------------------------------|
| <b>1. Office, Agency, or Court</b>                                                                                                          |
| Name of Office, Agency, or Court:<br>South Sutter Water District                                                                            |
| Division, Board, District, if applicable:                                                                                                   |
| Your Position:<br>Board member                                                                                                              |
| <input type="checkbox"/> If filing for multiple positions, list additional agency(ies)/position(s): (Attach a separate sheet if necessary.) |
| Agency:                                                                                                                                     |
| Position:                                                                                                                                   |
| <b>2. Jurisdiction of Office</b> (Check at least one box)                                                                                   |
| <input type="checkbox"/> State                                                                                                              |
| <input type="checkbox"/> County of _____                                                                                                    |
| <input type="checkbox"/> City of _____                                                                                                      |
| <input type="checkbox"/> Multi-County _____                                                                                                 |
| <input checked="" type="checkbox"/> Other: Portions of Yuba & Sutter County                                                                 |

### Example:

This filer is a member of a water district board with jurisdiction in portions of Yuba and Sutter County.

### Part 3. Type of Statement

Check at least one box. The period covered by a statement is determined by the type of statement you are filing. If you are completing a 2008 Annual Statement, **do not** change the pre-printed dates to reflect 2009. Your annual statement is used for reporting the previous year's economic interests. Economic interests for your annual filing covering January 1, 2008, through December 31, 2008, will be disclosed on your statement filed in 2009. (See Ref. Pamphlet, page 3, for detailed information about types of statements.)

Combining Statements: Certain types of statements may be combined. For example, if you leave office after January 1 but before the deadline for filing your annual statement, you may combine your annual and leaving office statements. File by the earliest deadline. Consult your filing officer or the FPPC.

### Part 4. Schedule Summary

- Enter the total number of completed pages including the cover page and, either:

Check the “Yes” box for each schedule you use to disclose interests.

- or -

If you have nothing to disclose on any schedules, check the “No reportable interests” box. Please do not attach any blank schedules.

### Part 5. Verification

Complete the verification by signing the statement and entering the date signed. When you sign your statement, you are stating, under penalty of perjury, that it is true and correct. Only the filer has authority to sign the statement.

**An unsigned statement is not considered filed and you may be subject to late filing penalties.**

**COVER PAGE**

*A Public Document*

Please type or print in ink.

|                                               |         |          |                                               |
|-----------------------------------------------|---------|----------|-----------------------------------------------|
| NAME (LAST)                                   | (FIRST) | (MIDDLE) | DAYTIME TELEPHONE NUMBER                      |
|                                               |         |          | ( )                                           |
| MAILING ADDRESS<br>(May use business address) | STREET  | CITY     | STATE ZIP CODE OPTIONAL: FAX / E-MAIL ADDRESS |

**1. Office, Agency, or Court**

Name of Office, Agency, or Court:

Division, Board, District, if applicable:

Your Position:

► If filing for multiple positions, list additional agency(ies)/ position(s): (Attach a separate sheet if necessary.)

Agency: \_\_\_\_\_

Position: \_\_\_\_\_

**2. Jurisdiction of Office (Check at least one box)**

- ☐ State
- ☐ County of \_\_\_\_\_
- ☐ City of \_\_\_\_\_
- ☐ Multi-County \_\_\_\_\_
- ☐ Other \_\_\_\_\_

**3. Type of Statement (Check at least one box)**

☐ Assuming Office/Initial Date: \_\_\_\_/\_\_\_\_/\_\_\_\_

☐ Annual: The period covered is January 1, 2008, through December 31, 2008.

**-or-**

☐ The period covered is \_\_\_\_/\_\_\_\_/\_\_\_\_, through December 31, 2008.

☐ Leaving Office Date Left: \_\_\_\_/\_\_\_\_/\_\_\_\_  
(Check one)

☐ The period covered is January 1, 2008, through the date of leaving office.

**-or-**

☐ The period covered is \_\_\_\_/\_\_\_\_/\_\_\_\_, through the date of leaving office.

☐ Candidate Election Year: \_\_\_\_\_

**4. Schedule Summary**

► Total number of pages including this cover page: \_\_\_\_\_

► Check applicable schedules or "No reportable interests."

I have disclosed interests on one or more of the attached schedules:

Schedule A-1 ☐ Yes – schedule attached  
*Investments (Less than 10% Ownership)*

Schedule A-2 ☐ Yes – schedule attached  
*Investments (10% or greater Ownership)*

Schedule B ☐ Yes – schedule attached  
*Real Property*

Schedule C ☐ Yes – schedule attached  
*Income, Loans, & Business Positions (Income Other than Gifts and Travel Payments)*

Schedule D ☐ Yes – schedule attached  
*Income – Gifts*

Schedule E ☐ Yes – schedule attached  
*Income – Gifts – Travel Payments*

**-or-**

☐ No reportable interests on any schedule

**5. Verification**

I have used all reasonable diligence in preparing this statement. I have reviewed this statement and to the best of my knowledge the information contained herein and in any attached schedules is true and complete.

**I certify under penalty of perjury under the laws of the State of California that the foregoing is true and correct.**

Date Signed \_\_\_\_\_  
(month, day, year)

Signature \_\_\_\_\_  
(File the originally signed statement with your filing official.)

## WHAT SCHEDULE DO I USE?

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### COMMON REPORTABLE INTERESTS

|               |                                                                                     |
|---------------|-------------------------------------------------------------------------------------|
| Schedule A-1: | Stocks                                                                              |
| Schedule A-2: | Business entities, partnerships, LLCs, corporations, trusts                         |
| Schedule B:   | Rental property in the jurisdiction                                                 |
| Schedule C:   | Non-government salaries of public official and spouse/registered domestic partner   |
| Schedule D:   | Gifts from non-family members (such as tickets to sporting or entertainment events) |
| Schedule E:   | Travel payments from third parties (not your employer)                              |

### COMMON NON-REPORTABLE INTERESTS

|                   |                                                                                                                                                                                |
|-------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Schedule A-1/A-2: | Diversified mutual funds registered with the SEC under the Investment Company Act of 1940 and certain retirement accounts invested in insurance policies or governmental bonds |
| Schedule A-1/A-2: | Savings and checking accounts                                                                                                                                                  |
| Schedule B:       | A residence used exclusively as a personal residence (such as a home, vacation cabin)                                                                                          |
| Schedule C:       | Government salary (such as a school district)                                                                                                                                  |
| Schedule D:       | Gifts from family members                                                                                                                                                      |
| Schedule E:       | Travel paid by your government agency                                                                                                                                          |

**Remember:** Mark the “no reportable interests” box on Part 4 of the schedule summary if you determine you have nothing to disclose and file the cover page only. **Make sure you carefully read all instructions to ensure proper reporting.**

The Form 700 is a public document.

Most individuals must consult the agency’s conflict-of-interest code for reportable interests.

Most individuals file the Form 700 with their agency.

## QUESTIONS AND ANSWERS

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- Q. What is the reporting period for disclosing interests on an assuming office statement or a candidate statement?
- A. On an assuming office statement, disclose all reportable investments, interests in real property, and business positions held on the date you assumed office. In addition, you must disclose income (including loans, gifts and travel payments) received during the 12 months prior to the date you assumed office.

On a candidate statement, disclose all reportable investments, interests in real property, and business positions held on the date you file your declaration of candidacy. In addition, you must disclose income (including loans, gifts and travel payments) received during the 12 months prior to the date you file your declaration of candidacy.

- Q. I hold two other board positions in addition to my position with the county. Must I file three statements of economic interests?
- A. Yes. However, you may complete one statement listing the county and the two boards on the cover page of the Form 700 as the agencies for which you will be filing. Report your economic interests using the broadest jurisdiction and disclosure requirements assigned to you by the three agencies. Make two copies of the entire statement **before signing it**, sign each copy with an original signature, and distribute one original to the county and to each of the two boards. Remember to complete separate statements for positions that you leave or assume during the year.
- Q. I am classified as a department head but recently began acting as city manager. Should I file as the city manager?
- A. Yes. File an assuming office statement as city manager. Persons serving as “acting”, “interim”, or “alternate” must file as if they hold the position.
- Q. I left one state agency to work for another state agency. Must I file a leaving office statement?
- A. Yes.

### Investment Disclosure

- Q. I have an investment interest in shares of stock in a company that does not have an office in my jurisdiction. Must I still disclose my investment interest in this company?
- A. Probably. The definition of “doing business in the jurisdiction” is not limited to whether the business has an office in your jurisdiction. See Ref. Pamphlet, page 12, for guidance.
- Q. My spouse and I have a living trust. The trust holds rental property in my jurisdiction, our primary residence, and investments in diversified mutual funds. I have full disclosure. How is this trust disclosed?
- A. Disclose the name of the trust, the rental property and its income on Schedule A-2. Your primary residence and investments in diversified mutual funds registered with the SEC are not reportable.
- Q. I am required to report all investments. I hold many stocks through an account managed by a brokerage firm. Must I disclose these stocks even though I did not decide which stocks to purchase?
- A. Yes, you must disclose on Schedule A-1 or A-2 any stock worth \$2,000 or more in a business entity located in or doing business in your jurisdiction.

### Income Disclosure

- Q. I reported a business entity on Schedule A-2. Clients of my business are located in several states. Must I report all clients from whom my pro rata share of income is \$10,000 or more on Schedule A-2, Part 3?
- A. No, only the clients doing business on a regular basis in your jurisdiction must be disclosed.
- Q. I believe I am not required to disclose the names of clients from whom my pro rata share of income is \$10,000 or more on Schedule A-2 because of their right to privacy. Is there an exception for reporting clients' names?
- A. Regulation 18740 provides a procedure in which a client's name may not be disclosed if disclosure of the name would violate a legally recognized privilege under California law. This regulation may be obtained from our website at [www.fppc.ca.gov](http://www.fppc.ca.gov).

## QUESTIONS AND ANSWERS

### Continued

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- Q. I am the sole owner of my business. Where do I disclose my income - on Schedule A-2 or Schedule C?
- A. Sources of income to a business in which you have an ownership interest of 10% or greater are disclosed on Schedule A-2. (See Ref. Pamphlet, page 7, which defines "business entity," for more information.)
- Q. How do I disclose my spouse's or registered domestic partner's income from an employer?
- A. Report the name of the employer as a source of income on Schedule C.
- Q. I am a doctor. For purposes of reporting \$10,000 sources of income on Schedule A-2, Part 3, are the patients or their insurance carriers considered sources of income?
- A. If your patients exercise sufficient control by selecting you instead of other doctors, your patients, rather than their insurance carriers, are sources of income to you.
- Q. Mary and Joe Benson, a married couple, want to give a piece of artwork to a close friend who is a county supervisor. Is each spouse considered a separate source for purposes of the gift limit and disclosure?
- A. Yes, each spouse may make a gift valued at \$420 during 2009-2010. Therefore, the Bensons may give the supervisor artwork valued at no more than \$840. (During 2007-2008, the gift limit was \$390 from a single source during a calendar year.) The supervisor must identify Joe and Mary Benson as the source of the gift.

#### Gift Disclosure

- Q. If I received a gift of two tickets to a concert valued at \$100 each, but gave the tickets to a friend because I could not attend the concert, do I have any reporting obligations?
- A. Yes. Since you accepted the gift and exercised discretion and control of the use of the tickets, you must disclose the gift on Schedule D.
- Q. Co-workers are hosting a retirement party for a public official before the official leaves office. Attendees will pay \$45; \$35 covers the event's costs (food, decorations, etc.) and \$10 goes toward a gift. One co-worker is collecting the funds and making the expenditures. What does the official report on his Form 700?
- A. The official discloses the amount that includes the value of the gift, plus \$35 (his pro rata share of the event's cost). The source can be identified as "office staff" or "co-workers." The names of individual donors are not required to be reported as long as no individual contributed \$50 or more.

## INSTRUCTIONS — SCHEDULES A-1 AND A-2 INVESTMENTS

“Investment” means a financial interest in any business entity which is located in, doing business in, planning to do business in, or which has done business during the previous two years in your agency’s jurisdiction in which you, your spouse or registered domestic partner, or your dependent children had a direct, indirect, or beneficial interest totaling \$2,000 or more at any time during the reporting period. (See Ref. Pamphlet, page 12.)

### Reportable investments include:

- Stocks, bonds, warrants, and options, including those held in margin or brokerage accounts and managed investment funds (See Ref. Pamphlet, page 12.)
- Sole proprietorships
- Your own business or your spouse’s or registered domestic partner’s business (See Ref. Pamphlet, page 7, for the definition of “business entity.”)
- Your spouse’s or registered domestic partner’s investments that are legally separate property
- Partnerships (for example, a law firm or family farm)
- Investments in reportable business entities held in a retirement account (See Ref. Pamphlet, page 14.)
- If you, your spouse or registered domestic partner, or dependent children had a 10% or greater ownership interest in a business entity or trust (including a living trust), you must disclose investments held by the business entity or trust. (See Ref. Pamphlet, page 14, for more information on disclosing trusts.)
- Business trusts

### You are not required to disclose:

- Diversified mutual funds registered with the Securities and Exchange Commission (SEC) under the Investment Company Act of 1940
- Bank accounts, savings accounts, and money market accounts
- Insurance policies
- Annuities
- Shares in a credit union
- Government bonds (including municipal bonds)
- Retirement accounts invested in non-reportable interests (for example, insurance policies, diversified mutual funds, or government bonds) (See Ref. Pamphlet, page 14.)

### REMINDERS

- Do you know your agency’s jurisdiction?
- Did you hold investments at any time during the period covered by this statement?
- Code filers – Your disclosure categories may only require disclosure of specific investments.

- Government defined-benefit pension plans
- Interests held in a blind trust (See Ref. Pamphlet, page 15.)

**Use Schedule A-1** to report ownership of less than 10% (for example, stock). Schedule C (Income) may also be required if the investment is not a stock or corporate bond. (See second example below.)

**Use Schedule A-2** to report ownership of 10% or greater (for example, a sole proprietorship).

### TO COMPLETE SCHEDULE A-1:

*Do not attach brokerage or financial statements.*

- Disclose the name of the business entity.
- Provide a general description of the business activity of the entity (for example, pharmaceuticals, computers, automobile manufacturing, or communications).
- Check the box indicating the highest fair market value of your investment during the reporting period. If you are filing a candidate or an assuming office statement, indicate the fair market value on the filing date or the date you took office, respectively.
- Identify the nature of your investment (for example, stocks, warrants, options, or bonds).
- If you initially acquired or disposed of your entire investment interest during the reporting period, enter the date acquired or disposed.

### Examples:

John Smith holds a state agency position. His conflict-of-interest code requires full disclosure of investments. John must disclose his stock holdings of \$2,000 or more in any company that does business in California, as well as those stocks held by his spouse or registered domestic partner and dependent children.

Susan Jones is a city council member. She has a 4% interest, worth \$5,000, in a limited partnership located in the city. Susan must disclose the partnership on Schedule A-1 and income of \$500 or more received from the partnership on Schedule C.



# SCHEDULE A-1

## Investments

### Stocks, Bonds, and Other Interests

(Ownership Interest is Less Than 10%)

Do not attach brokerage or financial statements.

CALIFORNIA FORM **700**

FAIR POLITICAL PRACTICES COMMISSION

Name \_\_\_\_\_

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF BUSINESS ACTIVITY

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000      ☐ \$10,001 - \$100,000  
☐ \$100,001 - \$1,000,000      ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock  
☐ Other \_\_\_\_\_  
(Describe)

IF APPLICABLE, LIST DATE:

\_\_\_\_/\_\_\_\_/08      \_\_\_\_/\_\_\_\_/08  
ACQUIRED      DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF BUSINESS ACTIVITY

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000      ☐ \$10,001 - \$100,000  
☐ \$100,001 - \$1,000,000      ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock  
☐ Other \_\_\_\_\_  
(Describe)

IF APPLICABLE, LIST DATE:

\_\_\_\_/\_\_\_\_/08      \_\_\_\_/\_\_\_\_/08  
ACQUIRED      DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF BUSINESS ACTIVITY

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000      ☐ \$10,001 - \$100,000  
☐ \$100,001 - \$1,000,000      ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock  
☐ Other \_\_\_\_\_  
(Describe)

IF APPLICABLE, LIST DATE:

\_\_\_\_/\_\_\_\_/08      \_\_\_\_/\_\_\_\_/08  
ACQUIRED      DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF BUSINESS ACTIVITY

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000      ☐ \$10,001 - \$100,000  
☐ \$100,001 - \$1,000,000      ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock  
☐ Other \_\_\_\_\_  
(Describe)

IF APPLICABLE, LIST DATE:

\_\_\_\_/\_\_\_\_/08      \_\_\_\_/\_\_\_\_/08  
ACQUIRED      DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF BUSINESS ACTIVITY

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000      ☐ \$10,001 - \$100,000  
☐ \$100,001 - \$1,000,000      ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock  
☐ Other \_\_\_\_\_  
(Describe)

IF APPLICABLE, LIST DATE:

\_\_\_\_/\_\_\_\_/08      \_\_\_\_/\_\_\_\_/08  
ACQUIRED      DISPOSED

► NAME OF BUSINESS ENTITY

GENERAL DESCRIPTION OF BUSINESS ACTIVITY

FAIR MARKET VALUE

- ☐ \$2,000 - \$10,000      ☐ \$10,001 - \$100,000  
☐ \$100,001 - \$1,000,000      ☐ Over \$1,000,000

NATURE OF INVESTMENT

- ☐ Stock  
☐ Other \_\_\_\_\_  
(Describe)

IF APPLICABLE, LIST DATE:

\_\_\_\_/\_\_\_\_/08      \_\_\_\_/\_\_\_\_/08  
ACQUIRED      DISPOSED

Comments: \_\_\_\_\_

## INSTRUCTIONS — SCHEDULE A-2

### INVESTMENTS, INCOME, AND ASSETS OF BUSINESS ENTITIES/TRUSTS

---

Use Schedule A-2 to report investments in a business entity or trust (including a living trust) in which you, your spouse or registered domestic partner, or your dependent children had a 10% or greater interest, totaling \$2,000 or more, during the reporting period and which is located in, doing business in, planning to do business in, or which has done business during the previous two years in your agency's jurisdiction. (See Ref. Pamphlet, page 12.) A trust located outside your agency's jurisdiction is reportable if it holds assets that are located in or doing business in the jurisdiction. You are not required to report a trust that contains no reportable interests. For example, if you have a trust containing only your personal residence, your savings account, and some municipal bonds, you would not report this trust because these interests are not reportable.

Also report on Schedule A-2 investments and real property held by that entity or trust if your pro rata share of the interest was \$2,000 or more during the reporting period.

#### TO COMPLETE SCHEDULE A-2:

**Part 1.** Disclose the name and address of the business entity or trust. If you are reporting an interest in a business entity, check "Business Entity" and complete the box as follows:

- Provide a general description of the business activity of the entity.
- Check the box indicating the fair market value of your investment.
- If you initially acquired or entirely disposed of this interest during the reporting period, enter the date acquired or disposed.
- Identify the nature of your investment.
- Disclose the job title or business position you held with the entity, if any (for example, if you were a director, officer, partner, trustee, employee, or held any position of management).

**Part 2.** Check the box indicating your **gross** income. Gross income is the total amount of income before deducting expenses, losses, or taxes. (This includes your pro rata share of the **gross** income **to the business entity or trust**, as well as your community property interest in your spouse's or registered domestic partner's share.)

**Part 3.** Disclose the name of each source of income which is located in, doing business in, planning to do business in, or which has done business during the previous two years in your agency's jurisdiction, as follows:

- Disclose each source of income and outstanding loan **to the business entity or trust** identified in Part 1 if

your pro rata share of the **gross** income (including your community property interest in your spouse's or registered domestic partner's share) to the business entity or trust from that source was \$10,000 or more during the reporting period. (See Ref. Pamphlet, page 10, for examples.) Income from governmental sources may be reportable if not considered salary. (See Regulation 18232.) Loans from commercial lending institutions made in the lender's regular course of business on terms available to members of the public without regard to your official status are **not reportable**.

- Disclose each individual or entity that was a source of commission income of \$10,000 or more during the reporting period through the business entity identified in Part 1. (See Ref. Pamphlet, page 7, for an explanation of commission income.)

You may be required to disclose sources of income located outside your jurisdiction. For example, you may have a client who resides outside your jurisdiction who does business on a regular basis with you. Such a client, if a reportable source of \$10,000 or more, must be disclosed.

Leave Part 3 blank if you do not have any reportable \$10,000 sources of income to disclose. Adding phrases such as "various clients" or "not disclosing sources pursuant to attorney-client privilege" may trigger a request for an amendment to your statement. (See Ref. Pamphlet, page 13, for details about privileged information.)

**Part 4.** Report any investments or interests in real property held **by the entity or trust** identified in part 1 if your pro rata share of the interest held was \$2,000 or more during the reporting period.

- Check the applicable box identifying the interest held as real property or an investment.
- If investment, provide the name and description of the business entity.
- If real property, report the address or other precise location (for example, an assessor's parcel number).
- Check the box indicating the fair market value of your interest in the real property or investment. (Report the fair market value of the portion of your residence claimed as a tax deduction if you are utilizing your residence for business purposes.)
- Identify the nature of your interest.
- Enter the date acquired or disposed only if you initially acquired or entirely disposed of your interest in the property or investment during the reporting period.



**SCHEDULE A-2**  
**Investments, Income, and Assets**  
**of Business Entities/Trusts**  
(Ownership Interest is 10% or Greater)

|                                                    |            |
|----------------------------------------------------|------------|
| <b>CALIFORNIA FORM</b>                             | <b>700</b> |
| <small>FAIR POLITICAL PRACTICES COMMISSION</small> |            |
| Name _____                                         |            |

**▶ 1. BUSINESS ENTITY OR TRUST**

Name \_\_\_\_\_

Address \_\_\_\_\_

Check one

☐ Trust, go to 2      ☐ Business Entity, complete the box, then go to 2

**GENERAL DESCRIPTION OF BUSINESS ACTIVITY**

FAIR MARKET VALUE

IF APPLICABLE, LIST DATE:

☐ \$2,000 - \$10,000

☐ \$10,001 - \$100,000

☐ \$100,001 - \$1,000,000

☐ Over \$1,000,000

\_\_\_\_\_/\_\_\_\_\_/08  
ACQUIRED

\_\_\_\_\_/\_\_\_\_\_/08  
DISPOSED

NATURE OF INVESTMENT

☐ Sole Proprietorship    ☐ Partnership

☐ \_\_\_\_\_  
Other

YOUR BUSINESS POSITION \_\_\_\_\_

**▶ 1. BUSINESS ENTITY OR TRUST**

Name \_\_\_\_\_

Address \_\_\_\_\_

Check one

☐ Trust, go to 2      ☐ Business Entity, complete the box, then go to 2

**GENERAL DESCRIPTION OF BUSINESS ACTIVITY**

FAIR MARKET VALUE

IF APPLICABLE, LIST DATE:

☐ \$2,000 - \$10,000

☐ \$10,001 - \$100,000

☐ \$100,001 - \$1,000,000

☐ Over \$1,000,000

\_\_\_\_\_/\_\_\_\_\_/08  
ACQUIRED

\_\_\_\_\_/\_\_\_\_\_/08  
DISPOSED

NATURE OF INVESTMENT

☐ Sole Proprietorship    ☐ Partnership

☐ \_\_\_\_\_  
Other

YOUR BUSINESS POSITION \_\_\_\_\_

**▶ 2. IDENTIFY THE GROSS INCOME RECEIVED (INCLUDE YOUR PRO RATA SHARE OF THE GROSS INCOME TO THE ENTITY/TRUST)**

☐ \$0 - \$499

☐ \$10,001 - \$100,000

☐ \$500 - \$1,000

☐ OVER \$100,000

☐ \$1,001 - \$10,000

**▶ 2. IDENTIFY THE GROSS INCOME RECEIVED (INCLUDE YOUR PRO RATA SHARE OF THE GROSS INCOME TO THE ENTITY/TRUST)**

☐ \$0 - \$499

☐ \$10,001 - \$100,000

☐ \$500 - \$1,000

☐ OVER \$100,000

☐ \$1,001 - \$10,000

**▶ 3. LIST THE NAME OF EACH REPORTABLE SINGLE SOURCE OF INCOME OF \$10,000 OR MORE (attach a separate sheet if necessary)**

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**▶ 3. LIST THE NAME OF EACH REPORTABLE SINGLE SOURCE OF INCOME OF \$10,000 OR MORE (attach a separate sheet if necessary)**

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**▶ 4. INVESTMENTS AND INTERESTS IN REAL PROPERTY HELD BY THE BUSINESS ENTITY OR TRUST**

Check one box:

☐ INVESTMENT

☐ REAL PROPERTY

Name of Business Entity or

Street Address or Assessor's Parcel Number of Real Property

Description of Business Activity or

City or Other Precise Location of Real Property

FAIR MARKET VALUE

IF APPLICABLE, LIST DATE:

☐ \$2,000 - \$10,000

☐ \$10,001 - \$100,000

☐ \$100,001 - \$1,000,000

☐ Over \$1,000,000

\_\_\_\_\_/\_\_\_\_\_/08  
ACQUIRED

\_\_\_\_\_/\_\_\_\_\_/08  
DISPOSED

NATURE OF INTEREST

☐ Property Ownership/Deed of Trust

☐ Stock

☐ Partnership

☐ Leasehold \_\_\_\_\_  
Yrs. remaining

☐ Other \_\_\_\_\_

☐ Check box if additional schedules reporting investments or real property are attached

**▶ 4. INVESTMENTS AND INTERESTS IN REAL PROPERTY HELD BY THE BUSINESS ENTITY OR TRUST**

Check one box:

☐ INVESTMENT

☐ REAL PROPERTY

Name of Business Entity or

Street Address or Assessor's Parcel Number of Real Property

Description of Business Activity or

City or Other Precise Location of Real Property

FAIR MARKET VALUE

IF APPLICABLE, LIST DATE:

☐ \$2,000 - \$10,000

☐ \$10,001 - \$100,000

☐ \$100,001 - \$1,000,000

☐ Over \$1,000,000

\_\_\_\_\_/\_\_\_\_\_/08  
ACQUIRED

\_\_\_\_\_/\_\_\_\_\_/08  
DISPOSED

NATURE OF INTEREST

☐ Property Ownership/Deed of Trust

☐ Stock

☐ Partnership

☐ Leasehold \_\_\_\_\_  
Yrs. remaining

☐ Other \_\_\_\_\_

☐ Check box if additional schedules reporting investments or real property are attached

Comments: \_\_\_\_\_

## INSTRUCTIONS — SCHEDULE B INTERESTS IN REAL PROPERTY

Report interests in real property located in your agency's jurisdiction in which you, your spouse or registered domestic partner, or your dependent children had a direct, indirect, or beneficial interest totaling \$2,000 or more any time during the reporting period. (See Ref. Pamphlet, page 12.)

### Interests in real property include:

- An ownership interest (including a beneficial ownership interest)
- A deed of trust, easement, or option to acquire property
- A leasehold interest (See Ref. Pamphlet, page 13.)
- A mining lease
- An interest in real property held in a retirement account (See Ref. Pamphlet, page 14.)
- An interest in real property held by a business entity or trust in which you, your spouse or registered domestic partner, or your dependent children had a 10% or greater ownership interest (report on Schedule A-2)
- Your spouse's or registered domestic partner's interests in real property that are legally held separately by him or her

### You are not required to report:

- A residence, such as a home or vacation cabin, used exclusively as a personal residence (However, a residence for which you claim a business deduction may be reportable. If reportable, report the fair market value of the portion claimed as a tax deduction.)
- Interests in real property held through a blind trust (See Ref. Pamphlet, page 15, for exceptions.)

### TO COMPLETE SCHEDULE B:

- Report the address or other precise location (for example, an assessor's parcel number) of the real property.
- Check the box indicating the fair market value of your interest in the property (regardless of what you owe on the property).
- Enter the date acquired or disposed only if you initially acquired or entirely disposed of your interest in the property during the reporting period.
- Identify the nature of your interest. If it is a leasehold, disclose the number of years remaining on the lease.

### REMINDERS

- Income and loans already reported on Schedule B are not also required to be reported on Schedule C.
- Code filers – Do your disclosure categories require disclosure of real property?

- If you received rental income, check the box indicating the gross amount you received.
- If you had a 10% or greater interest in real property and received rental income, list the name of the source(s) if your pro rata share of the gross income from any single tenant was \$10,000 or more during the reporting period. If you received a total of \$10,000 or more from two or more tenants acting in concert (e.g., in most cases, this will apply to married couples), disclose the name of each tenant. Otherwise, leave this section blank.
- Loans from a private lender that total \$500 or more and are secured by real property may be reportable. Reportable loans may be disclosed on Schedule B or Schedule C. **Loans from commercial lending institutions made in the lender's regular course of business on terms available to members of the public without regard to your official status are not reportable.**
  - Provide the name and address of the lender.
  - Describe the lender's business activity.
  - Disclose the interest rate and term of the loan. The term of a loan is the total number of months or years given for repayment of the loan at the time the loan was entered into. For variable interest rate loans, disclose the conditions of the loan (for example, Prime + 2) or the average interest rate paid during the reporting period.
  - Check the box indicating the highest balance of the loan during the reporting period.
  - Identify a guarantor, if applicable.

If you have more than one reportable loan on a single piece of real property, report the additional loan(s) on Schedule C.

### Example:

Joe Nelson is a city planning commissioner. Joe received rental income of \$12,000 during the reporting period from a single tenant who rented property Joe owned in the city's jurisdiction. If Joe had received the \$12,000 from two or more tenants, the tenants' names would not be required as long as no single tenant paid \$10,000 or more.

|                                                                                                                                                                                                                                                                            |                                                                         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------|
| STREET ADDRESS OR PRECISE LOCATION<br>4600 24th Street                                                                                                                                                                                                                     |                                                                         |
| CITY<br>Sacramento, CA 95814                                                                                                                                                                                                                                               |                                                                         |
| FAIR MARKET VALUE<br><input type="checkbox"/> \$2,000 - \$10,000<br><input type="checkbox"/> \$10,001 - \$100,000<br><input checked="" type="checkbox"/> \$100,001 - \$1,000,000<br><input type="checkbox"/> Over \$1,000,000                                              | IF APPLICABLE, LIST DATE:<br>ACQUIRED <u>08</u> / <u>08</u><br>DISPOSED |
| NATURE OF INTEREST<br><input checked="" type="checkbox"/> Ownership/Deed of Trust <input type="checkbox"/> Easement<br><input type="checkbox"/> Leasehold <input type="checkbox"/> Yrs. remaining <input type="checkbox"/> Other                                           |                                                                         |
| IF RENTAL PROPERTY, GROSS INCOME RECEIVED<br><input type="checkbox"/> \$0 - \$499 <input type="checkbox"/> \$500 - \$1,000 <input type="checkbox"/> \$1,001 - \$10,000<br><input checked="" type="checkbox"/> \$10,001 - \$100,000 <input type="checkbox"/> OVER \$100,000 |                                                                         |
| SOURCES OF RENTAL INCOME: If you own a 10% or greater interest, list the name of each tenant that is a single source of income of \$10,000 or more.<br>Henry Wells                                                                                                         |                                                                         |
| NAME OF LENDER*<br>Sophia Petroillo                                                                                                                                                                                                                                        |                                                                         |
| ADDRESS<br>2121 Blue Sky Parkway                                                                                                                                                                                                                                           |                                                                         |
| BUSINESS ACTIVITY OF LENDER<br>Restaurant Owner                                                                                                                                                                                                                            |                                                                         |
| INTEREST RATE<br>8 % <input type="checkbox"/> None                                                                                                                                                                                                                         | TERM (Months/Years)<br>15 Years                                         |
| HIGHEST BALANCE DURING REPORTING PERIOD<br><input type="checkbox"/> \$500 - \$1,000 <input type="checkbox"/> \$1,001 - \$10,000<br><input checked="" type="checkbox"/> \$10,001 - \$100,000 <input type="checkbox"/> OVER \$100,000                                        |                                                                         |
| <input type="checkbox"/> Guarantor, if applicable                                                                                                                                                                                                                          |                                                                         |



# INSTRUCTIONS – SCHEDULE C

## INCOME, LOANS, & BUSINESS POSITIONS

### (Income Other Than Gifts and Travel Payments)

Report the source and amount of gross income of \$500 or more you received during the reporting period. Gross income is the total amount of income before deducting expenses, losses, or taxes and includes loans other than loans from a commercial lending institution. (See Ref. Pamphlet, page 10.) Also report your job title with each reportable business entity, even if you received no income during the reporting period. You must also report the source of income to your spouse or registered domestic partner if your community property share is \$500 or more during the reporting period.

A source of income must be reported only if the source is located in, doing business in, planning to do business in, or has done business during the previous two years in your agency's jurisdiction. (See Ref. Pamphlet, page 12, for more information about doing business in the jurisdiction.) Reportable sources of income may be further limited by your agency's conflict-of-interest code.

#### Commonly reportable income and loans include:

- Salary/wages, per diem, reimbursement for expenses including travel payments provided by your employer
- Community property interest (50%) in your spouse's or registered domestic partner's income - **report the employer's name and all other required information**
- Income from investment interests, such as partnerships, reported on Schedule A-1
- Commission income not required to be reported on Schedule A-2 (See Ref. Pamphlet, page 7.)
- Gross income from any sale, including the sale of a house or car (report your pro rata share of the total sale price)
- Rental income not required to be reported on Schedule B
- Prizes or awards not disclosed as gifts
- Payments received on loans you made to others, including loan repayments from a campaign committee
- An honorarium received prior to becoming a public official (See Ref. Pamphlet, page 9, concerning your ability to receive future honoraria.)
- Incentive compensation (See Ref. Pamphlet, page 11.)

#### REMINDERS

- Code filers – Your disclosure categories may not require disclosure of all sources of income.
- If you or your spouse or registered domestic partner are self-employed, report the business entity on Schedule A-2.
- Do not disclose on Schedule C income, loans, or business positions already reported on Schedules A-2 or B.

#### You are not required to report:

- Salary, reimbursement for expenses or per diem, social security, disability, or other similar benefit payments received by you or your spouse or registered domestic partner from a federal, state, or local government agency

***See Ref. Pamphlet, page 11, for more exceptions to income reporting.***

#### TO COMPLETE SCHEDULE C:

##### 1. Income Received/Business Position Disclosure

- Disclose the name and address of each source of income or each business entity with which you held a business position.
- Provide a general description of the business activity if the source is a business entity.
- Disclose the job title or business position, if any, that you held with the business entity, even if you did not receive income during the reporting period.
- Check the box indicating the amount of gross income received.
- Identify the consideration for which the income was received.
- For income from commission sales, check the box indicating the gross income received and list the name of each source of commission income of \$10,000 or more. (See Ref. Pamphlet, page 7.)
- For income from rental property that is not required to be listed on Schedule B, enter "Rental Income" under "Name of Source," check the box indicating the gross income received, and, if you had a 10% or greater interest in the rental property, list the name of each tenant if your pro rata share of the gross income from that tenant was \$10,000 or more during the reporting period.

##### 2. Loans Received or Outstanding During Reporting Period

- Disclose the name and address of each lender.
- Provide a general description of the business activity if the lender is a business entity.
- Check the box indicating the highest balance of the loan during the reporting period.
- Disclose the interest rate and the term of the loan.
  - The term of the loan is the total number of months or years given for repayment of the loan at the time the loan was entered into.
  - For variable interest rate loans, disclose the conditions of the loan (for example, Prime + 2) or the average interest rate paid during the reporting period.
- Identify the security, if any, for the loan.

**SCHEDULE C**  
**Income, Loans, & Business**  
**Positions**  
(Other than Gifts and Travel Payments)

**CALIFORNIA FORM 700**  
FAIR POLITICAL PRACTICES COMMISSION

Name \_\_\_\_\_

► **1. INCOME RECEIVED**

NAME OF SOURCE OF INCOME \_\_\_\_\_

ADDRESS \_\_\_\_\_

BUSINESS ACTIVITY, IF ANY, OF SOURCE \_\_\_\_\_

YOUR BUSINESS POSITION \_\_\_\_\_

GROSS INCOME RECEIVED

☐ \$500 - \$1,000      ☐ \$1,001 - \$10,000  
☐ \$10,001 - \$100,000      ☐ OVER \$100,000

CONSIDERATION FOR WHICH INCOME WAS RECEIVED

☐ Salary      ☐ Spouse's or registered domestic partner's income

☐ Loan repayment

☐ Sale of \_\_\_\_\_  
(Property, car, boat, etc.)

☐ Commission or      ☐ Rental Income, list each source of \$10,000 or more

☐ Other \_\_\_\_\_  
(Describe)

► **1. INCOME RECEIVED**

NAME OF SOURCE OF INCOME \_\_\_\_\_

ADDRESS \_\_\_\_\_

BUSINESS ACTIVITY, IF ANY, OF SOURCE \_\_\_\_\_

YOUR BUSINESS POSITION \_\_\_\_\_

GROSS INCOME RECEIVED

☐ \$500 - \$1,000      ☐ \$1,001 - \$10,000  
☐ \$10,001 - \$100,000      ☐ OVER \$100,000

CONSIDERATION FOR WHICH INCOME WAS RECEIVED

☐ Salary      ☐ Spouse's or registered domestic partner's income

☐ Loan repayment

☐ Sale of \_\_\_\_\_  
(Property, car, boat, etc.)

☐ Commission or      ☐ Rental Income, list each source of \$10,000 or more

☐ Other \_\_\_\_\_  
(Describe)

► **2. LOANS RECEIVED OR OUTSTANDING DURING THE REPORTING PERIOD**

\* You are not required to report loans from commercial lending institutions, or any indebtedness created as part of a retail installment or credit card transaction, made in the lender's regular course of business on terms available to members of the public without regard to your official status. Personal loans and loans received not in a lender's regular course of business must be disclosed as follows:

NAME OF LENDER\* \_\_\_\_\_

ADDRESS \_\_\_\_\_

BUSINESS ACTIVITY, IF ANY, OF LENDER \_\_\_\_\_

HIGHEST BALANCE DURING REPORTING PERIOD

☐ \$500 - \$1,000  
☐ \$1,001 - \$10,000  
☐ \$10,001 - \$100,000  
☐ OVER \$100,000

INTEREST RATE

\_\_\_\_\_ %      ☐ None

TERM (Months/Years)

SECURITY FOR LOAN

☐ None      ☐ Personal residence

☐ Real Property \_\_\_\_\_  
Street address \_\_\_\_\_  
City \_\_\_\_\_

☐ Guarantor \_\_\_\_\_

☐ Other \_\_\_\_\_  
(Describe)

Comments: \_\_\_\_\_

## INSTRUCTIONS — SCHEDULE D

### INCOME — GIFTS

A gift is anything of value for which you have not provided equal or greater consideration to the donor. A gift is reportable if its fair market value is \$50 or more. In addition, multiple gifts totaling \$50 or more received during the reporting period from a single source must be reported.

**Gifts are reportable regardless of where the donor is located.**

It is the acceptance of a gift, not the ultimate use to which it is put, that imposes your reporting obligation. Except as noted below, you must report a gift even if you never used it or if you gave it away to another person.

If the exact amount of a gift is unknown, you must make a good faith estimate of the item's fair market value. Listing the value of a gift as "over \$50" or "value unknown" is not adequate disclosure. In addition, if you received a gift through an intermediary, you must disclose the name, address, and business activity of both the donor and the intermediary.

#### Commonly reportable gifts include:

- Tickets/passes to sporting or entertainment events
- Tickets/passes to amusement parks
- Parking passes
- Food, beverages, and accommodations, including those provided in direct connection with your attendance at a convention, conference, meeting, social event, meal, or like gathering, where you did not give a speech, participate in a panel or seminar, or provide a similar service
- Rebates/discounts not made in the regular course of business to members of the public without regard to official status
- Wedding gifts (See Ref. Pamphlet, page 15, to determine value.)
- An honorarium (You may report an honorarium as income on Schedule C, rather than as a gift on Schedule D, if you provided services of equal or greater value than the payment received. See Ref. Pamphlet, page 9, regarding your ability to receive future honoraria.)
- Transportation and lodging (see Schedule E)
- Forgiveness of a loan received by you

#### You are not required to disclose:

- Gifts that were not used and which, within 30 days after receipt, were returned to the donor or delivered to a charitable organization without being claimed by you as a charitable contribution for tax purposes

#### REMINDERS

- Gifts from a single source are subject to limit. See Ref. Pamphlet, page 9.
- See Ref. Pamphlet, page 1, for new rules on tickets.
- Code filers – You only need to report gifts from reportable sources.

- Gifts from your spouse or registered domestic partner, child, parent, grandparent, grandchild, brother, sister, aunt, uncle, niece, nephew, or first cousin (Included in this exception are gifts from your spouse or domestic partner's children, parents, brothers, sisters, and the spouse or registered domestic partner of the individuals listed above. The exception does not apply if the donor was acting as an agent or intermediary for a reportable source who was the true donor.)
- Gifts of hospitality involving food, drink, or occasional lodging provided in an individual's home when the individual or a member of the individual's family was present
- Gifts of similar value exchanged between you and an individual, other than a lobbyist, on holidays, birthdays, or similar occasions
- Gifts of informational material provided to assist you in the performance of your official duties (for example, books, pamphlets, reports, calendars, periodicals, or educational seminars)
- A bequest or inheritance (However, inherited investments or real property may be reportable on other schedules.)
- Personalized plaques and trophies with an individual value of less than \$250
- Campaign contributions
- A single ticket to a 501(c)(3) or political fundraising event received for your own use from the organization or the committee holding the fundraiser (the gift limit applies to nonprofit tickets)
- Gifts given to members of your immediate family unless you enjoy direct benefit of the gift, use the gift, or exercise discretion or control over the use or disposition of the gift (See Commission Regulation 18944.)
- A pass or ticket that provided a one-time admission to an event (theater performance, sporting event) that was not used and was not transferred to another person (Commission Regulation 18946.1 provides a method for determining the value of a ticket or pass that was used or transferred to another person and for determining the value of passes or tickets which provide repeated admission to facilities or services.)
- Food, beverages, and necessary accommodations provided directly in connection with an event at which you gave a speech, participated in a panel or seminar, or provided a similar service

#### TO COMPLETE SCHEDULE D:

- Disclose the full name (not an acronym), address, and, if a business entity, the business activity of the source.
- Provide the date (month, day, and year) of receipt, and disclose the fair market value and description of the gift.



SCHEDULE D

Income – Gifts

| <div>▶ NAME OF SOURCE</div> <div>ADDRESS</div> <div>BUSINESS ACTIVITY, IF ANY, OF SOURCE</div> <table> <tr> <th>DATE (mm/dd/yy)</th> <th>VALUE</th> <th>DESCRIPTION OF GIFT(S)</th> </tr> <tr> <td>____/____/____</td> <td>\$ _____</td> <td>_____</td> </tr> <tr> <td>____/____/____</td> <td>\$ _____</td> <td>_____</td> </tr> <tr> <td>____/____/____</td> <td>\$ _____</td> <td>_____</td> </tr> </table> | DATE (mm/dd/yy) | VALUE                  | DESCRIPTION OF GIFT(S) | ____/____/____ | \$ _____ | _____ | ____/____/____ | \$ _____ | _____ | ____/____/____ | \$ _____ | _____ | <div>▶ NAME OF SOURCE</div> <div>ADDRESS</div> <div>BUSINESS ACTIVITY, IF ANY, OF SOURCE</div> <table> <tr> <th>DATE (mm/dd/yy)</th> <th>VALUE</th> <th>DESCRIPTION OF GIFT(S)</th> </tr> <tr> <td>____/____/____</td> <td>\$ _____</td> <td>_____</td> </tr> <tr> <td>____/____/____</td> <td>\$ _____</td> <td>_____</td> </tr> <tr> <td>____/____/____</td> <td>\$ _____</td> <td>_____</td> </tr> </table> | DATE (mm/dd/yy) | VALUE | DESCRIPTION OF GIFT(S) | ____/____/____ | \$ _____ | _____ | ____/____/____ | \$ _____ | _____ | ____/____/____ | \$ _____ | _____ |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|------------------------|------------------------|----------------|----------|-------|----------------|----------|-------|----------------|----------|-------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|-------|------------------------|----------------|----------|-------|----------------|----------|-------|----------------|----------|-------|
| DATE (mm/dd/yy)                                                                                                                                                                                                                                                                                                                                                                                                | VALUE           | DESCRIPTION OF GIFT(S) |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| DATE (mm/dd/yy)                                                                                                                                                                                                                                                                                                                                                                                                | VALUE           | DESCRIPTION OF GIFT(S) |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
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| DATE (mm/dd/yy)                                                                                                                                                                                                                                                                                                                                                                                                | VALUE           | DESCRIPTION OF GIFT(S) |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
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| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| DATE (mm/dd/yy)                                                                                                                                                                                                                                                                                                                                                                                                | VALUE           | DESCRIPTION OF GIFT(S) |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
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| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| DATE (mm/dd/yy)                                                                                                                                                                                                                                                                                                                                                                                                | VALUE           | DESCRIPTION OF GIFT(S) |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |
| ____/____/____                                                                                                                                                                                                                                                                                                                                                                                                 | \$ _____        | _____                  |                        |                |          |       |                |          |       |                |          |       |                                                                                                                                                                                                                                                                                                                                                                                                                |                 |       |                        |                |          |       |                |          |       |                |          |       |

Comments:



## INSTRUCTIONS – SCHEDULE E TRAVEL PAYMENTS, ADVANCES, AND REIMBURSEMENTS

Travel payments reportable on Schedule E include advances and reimbursements for travel and related expenses, including lodging and meals.

Gifts of travel may be subject to the gift limit. In addition, certain travel payments are reportable gifts, but are not subject to the gift limit. To avoid possible misinterpretation or the perception that you may have received a gift in excess of the gift limit, you may wish to provide a specific description of the purpose of your travel. See the FPPC fact sheet entitled “Limitations and Restrictions on Gifts, Honoraria, Travel, and Loans,” which can be obtained from your filing officer or the FPPC website at [www.fppc.ca.gov](http://www.fppc.ca.gov). Effective August 15, 2008, Regulation 18946.6 provides new valuation methods for gifts of air transportation.

### You are not required to disclose:

- Travel payments received from any state, local, or federal government agency for which you provided services equal or greater in value than the payments received
- Travel payments received from your employer in the normal course of your employment that are included in the income reported on Schedule C
- Payments or reimbursements for transportation within California in connection with an event at which you gave a speech, participated in a panel or seminar, or performed a similar service
- Food, beverages, and necessary accommodations received directly in connection with an event held inside or outside California at which you gave a speech, participated in a panel, or provided a similar service (Note that payments for transportation outside of California are reportable.)
- A travel payment that was received from a non-profit entity exempt from taxation under Internal Revenue Code Section 501(c)(3) for which you provided equal or greater consideration

### TO COMPLETE SCHEDULE E:

- Disclose the full name (not an acronym) and address of the source of the travel payment.
- Identify the business activity, if any, of the source.
- Check the box to identify the payment as a gift or income, report the amount, and disclose the date(s) if applicable.

- Travel payments are gifts if you did not provide services that were equal to or greater in value than the payments received. You must disclose gifts totaling \$50 or more from a single source during the period covered by the statement. Gifts of travel are reportable without regard to where the donor is located.

When reporting travel payments that are gifts, you must provide a description of the gift and the date(s) received.

- Travel payments are income if you provided services that were equal to or greater in value than the payments received. You must disclose income totaling \$500 or more from a single source during the period covered by the statement. You have the burden of proving the payments are income rather than gifts.

When reporting travel payments as income, you must describe the services you provided in exchange for the payment. You are not required to disclose the date(s) for travel payments that are income.

### Example:

City council member Rick Chandler is a board member of the League of California Cities. The League reimburses its board members for travel and lodging, as well as meals and other expenses associated with board meetings.

If Rick provides equal or greater consideration for the travel and lodging when he participates in the meeting, the reimbursements are reported as income. Note that the burden is on the official to determine whether he or she has provided equal or greater value for the payment.

|                                                                                                            |                |
|------------------------------------------------------------------------------------------------------------|----------------|
| NAME OF SOURCE                                                                                             |                |
| League of California Cities                                                                                |                |
| ADDRESS                                                                                                    |                |
| 1400 K Street, Suite 400                                                                                   |                |
| CITY AND STATE                                                                                             |                |
| Sacramento, CA                                                                                             |                |
| BUSINESS ACTIVITY, IF ANY, OF SOURCE                                                                       |                |
| Association of city officials                                                                              |                |
| DATE(S): 9 / 16 / 08 - 9 / 17 / 08                                                                         | AMT: \$ 588.00 |
| (if applicable)                                                                                            |                |
| TYPE OF PAYMENT: (must check one) <input type="checkbox"/> Gift <input checked="" type="checkbox"/> Income |                |
| DESCRIPTION: Travel reimbursement for board meeting                                                        |                |

**SCHEDULE E**  
**Income – Gifts**  
**Travel Payments, Advances,**  
**and Reimbursements**

**CALIFORNIA FORM 700**

**FAIR POLITICAL PRACTICES COMMISSION**

Name \_\_\_\_\_

- **Reminder – you must mark the gift or income box.**
- **You are not required to report “income” from government agencies.**

► NAME OF SOURCE

ADDRESS

CITY AND STATE

BUSINESS ACTIVITY, IF ANY, OF SOURCE

DATE(S): \_\_\_\_/\_\_\_\_/\_\_\_\_ - \_\_\_\_/\_\_\_\_/\_\_\_\_ AMT: \$\_\_\_\_\_  
(If applicable)

TYPE OF PAYMENT: (must check one) ☐ Gift ☐ Income

DESCRIPTION: \_\_\_\_\_

► NAME OF SOURCE

ADDRESS

CITY AND STATE

BUSINESS ACTIVITY, IF ANY, OF SOURCE

DATE(S): \_\_\_\_/\_\_\_\_/\_\_\_\_ - \_\_\_\_/\_\_\_\_/\_\_\_\_ AMT: \$\_\_\_\_\_  
(If applicable)

TYPE OF PAYMENT: (must check one) ☐ Gift ☐ Income

DESCRIPTION: \_\_\_\_\_

► NAME OF SOURCE

ADDRESS

CITY AND STATE

BUSINESS ACTIVITY, IF ANY, OF SOURCE

DATE(S): \_\_\_\_/\_\_\_\_/\_\_\_\_ - \_\_\_\_/\_\_\_\_/\_\_\_\_ AMT: \$\_\_\_\_\_  
(If applicable)

TYPE OF PAYMENT: (must check one) ☐ Gift ☐ Income

DESCRIPTION: \_\_\_\_\_

► NAME OF SOURCE

ADDRESS

CITY AND STATE

BUSINESS ACTIVITY, IF ANY, OF SOURCE

DATE(S): \_\_\_\_/\_\_\_\_/\_\_\_\_ - \_\_\_\_/\_\_\_\_/\_\_\_\_ AMT: \$\_\_\_\_\_  
(If applicable)

TYPE OF PAYMENT: (must check one) ☐ Gift ☐ Income

DESCRIPTION: \_\_\_\_\_

**Comments:** \_\_\_\_\_